

26STCV07611 26STCV07611

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Case Number: 26STCV07611 Hearing Date: August 6, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

RAHULKUMAR RAMESHCHANDRA GOHIL,

Plaintiff,

vs.

VALLEY PRESBYTERIAN HOSPITAL, et al.,

Defendants.

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CASE NO.: 26STCV07611

[TENTATIVE] ORDER GRANTING MOTION TO SEAL;
DENYING DEFENDANTS' SPECIAL MOTION TO STRIKE (ANTI-SLAPP MOTION)

Dept. 506

8:30 a.m.

August 6, 2026

On March 10, 2026, Plaintiff Rahulkumar Rameshchandra Gohil
filed this action against Defendants Valley Presbyterian Hospital; Medical Staff
of Valley Presbyterian Hospital; Hannah Grossman, M.D.; Bolatito Abe, M.D.; Gustavo
Valdespino; and others.

On May 18, 2026, Defendants filed a
special motion to strike under Code of Civil Procedure section 425.16 ("anti-SLAPP
motion") for the first and second causes of action.[1] Defendants also filed a motion to seal.

On

June 29, 2026, Plaintiff filed an amended complaint in response to a demurrer. The parties filed supplemental briefs agreeing
that this amended complaint does not moot the anti-SLAPP motion directed at the
original Complaint. (See, e.g., Sylmar
Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th
1049, 1052.)

MOTION
TO SEAL

Defendants

seek to file under seal portions of the Medical Staff Peer Review Records lodged in connection with the anti-SLAPP motion.

The Court may order that a record be filed under seal

only if it finds that (1) there is an overriding interest that overcomes the right of public access to the record, (2) the overriding interest supports sealing the record, (3) a substantial probability exists that the overriding interest will be prejudiced absent sealing, (4) the proposed sealing is narrowly tailored, and (5)

no less restrictive means exists to achieve the overriding interest. (California Rules of Court, rule 2.550(d).) A motion seeking an order sealing records must

be accompanied by a declaration containing facts sufficient to justify the sealing. (California Rules of Court, rule 2.551(b)(1).)

A

record must not be filed under seal without a court order, and a party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. (California Rules of

Court, rule 2.551(a)-(b).) The party requesting

sealing must also file a public redacted version and lodge conditionally under seal with the court a complete, unredacted version.

(California Rules of Court, rule 2.551(b)(4)-(b)(5).)

On

August 3, 2026—the evening before the previously scheduled date for this motion's hearing—Plaintiff filed a late opposition.

Plaintiff "objects to the introduction of the documents at all as they are

irrelevant to the claims that Plaintiff asserts in his original (and amended) complaints,

and to those asserted in his Opposition to the Anti SLAPP Motion. All of the peer review' documents requested for

seal are those that Defendants introduced themselves, and of their own free will." (Opposition at p. 2.) These are not grounds to deny sealing.

Plaintiff

also argues that the documents are not privileged. (Opposition at pp. 4-5.) However, there is a "strong public interest in preserving the confidentiality of the medical peer review process." (Fox v. Kramer (2000) 22 Cal.4th 531, 539.) "When medical staff committees bear delegated responsibility for the competence of staff

practitioners, the quality of in-hospital medical care depends heavily upon the

committee members' frankness in evaluating their associates' medical skills and

their objectivity in regulating staff privileges. Although composed of volunteer professionals,

these committees are affected with a strong element of public interest." (Santa Rosa Memorial Hospital v. Superior Court (1985) 174 Cal.App.3d 711, 719.)

The

Court therefore finds that there is an overriding interest that overcomes the right of public access to the record, that overriding interest supports sealing this record, and substantial probability exists that the overriding interest will be prejudiced absent sealing. The request is also narrowly tailored, as Defendants request to seal only portions of the motion and declaration, and not the entirety of the documents.

Accordingly,
the motion to seal is GRANTED.

ANTI-SLAPP MOTION

“A
cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or California Constitution in connection with a public issue shall be subject to a special motion to strike unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).)

“A
court's consideration of an anti-SLAPP motion involves a two-step process. 'First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant's burden is to demonstrate that the act or acts of which the plaintiff complains were taken "in furtherance of the [defendant]'s right of petition or free speech under the United States or California Constitution in connection with a public issue," as defined in the statute. [Citation.] If the court finds such a showing has been made, it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim.' [Citation.] In the second step, the plaintiff must only bring forward sufficient evidence to make out a viable prima facie case at trial, a burden that 'is not particularly high.' [Citation.]" (O&C Creditors Group, LLC v. Stephens & Stephens XII, LLC (2019) 42 Cal.App.5th 546, 565-566 (O&C Creditors Group).)

A. Defendants Have Shown That the Actions
Arose From Protected Activity.

Plaintiff

alleges that he repeatedly reported dangerous and unlawful medical practices occurring at the hospital, but “Defendants retaliated against Plaintiff by undermining his professional reputation, shifting blame for adverse outcomes to him, and creating adverse conditions affecting his medical practice which resulted in his loss of employment and his inability to practice as a surgeon.” (Complaint ¶¶ 1-5.) “Instead of investigating Plaintiff’s concerns, Defendants began retaliating against him.

Among other actions, Defendants attempted to attribute adverse outcomes resulting from the above practices to Plaintiff . . . [and] took actions that undermined Plaintiff’s professional standing and interfered with his ability to practice medicine.” (Complaint ¶¶ 33-34.)

Defendants

argue that “their alleged retaliatory actions consist solely of the Medical Staff’s peer review proceedings and legally required reporting, both of which fall within the scope of protected activity.” (Motion at p. 16; see id. at pp. 13-15.)

Protected

activities include “any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” (Code Civ. Proc., § 425.16, subd. (e).) Peer review proceedings are “official proceeding[s]”

under this section. (*Bonni v. St. Joseph*

Health System (2021) 11 Cal.5th 995, 1013 (*Bonni*)). However, not all decisions made in the course of the proceedings are protected, and not every peer review-based decision to impose discipline is protected activity. (*Id.*

at p. 1014.) “[T]he anti-SLAPP statute protects speech and petitioning activity taken in connection with an official proceeding, but not necessarily the decisions made or actions taken as a result of those proceedings.” (*Ibid.*)

Criticism

of a doctor’s competence supplied to a body reviewing his hospital privileges is protected activity when made in connection with peer review proceedings. (*Bonni*, supra, 11 Cal.5th at p. 1016.) But “even if the statute shields statements about an individual’s qualifications, the Legislature did not necessarily also intend to shield all actions motivated by those views.” (*Id.* at p. 1022.) The inquiry focuses on whether Defendants’ conduct advances their ability to speak on matters of public concern. (*Ibid.*)

Plaintiff

alleges that Defendants “attempted to attribute adverse outcomes resulting from the above [complained-about] practices to Plaintiff.” (Complaint ¶ 33.) “Defendants also took actions that undermined

Plaintiff's professional standing and interfered with his ability to practice medicine," concluding with firing Plaintiff. (Complaint ¶¶ 34, 36.) Plaintiff's declaration elaborates that the actions included making negative changes to his call schedule to "maximiz[e] burnout and eliminat[e] balance," forcing Plaintiff to take a leave of absence based on a false accusation of not seeing a patient, and filing reports against him. (Gohil Decl. ¶¶ 10-11; Opposition at p. 6.)

In Bonni, the allegedly retaliatory suspension and termination of privileges imposed on the doctor triggered the peer review hearing, so those disciplinary decisions were not protected as part of the peer review process. (Bonni, supra, 11 Cal.5th at p. 1022.) Here, however, Defendants have shown (through material now under seal) that the alleged retaliation grew out of an ongoing peer review process. (See Opposition at pp. 14-16.)

The Court finds that there was protected activity under the anti-SLAPP statute.

B. Plaintiff Has Demonstrated a Likelihood of Prevailing on the Merits.

"To satisfy the second prong—the probability of prevailing—the plaintiff must demonstrate that the complaint is legally sufficient and supported by a prima facie showing of facts to support a favorable judgment if the evidence submitted by the plaintiff is accepted. The trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant. Although ""the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim. [Citation.]" [Citation.]' [Citation.]" (Kenne v. Stennis (2014) 230 Cal.App.4th 953, 962-963.) "An anti-SLAPP motion is an evidentiary motion. Once the court reaches the second prong of the analysis, it must rely on admissible evidence, not merely allegations in the complaint or conclusory statements by counsel." (Finton Construction, Inc. v. Bidna & Keys, APLC (2015) 238 Cal.App.4th 200, 213.)

For the first cause of action, Plaintiff must prove that he was retaliated against for

advocating for medically appropriate health care for his patients. (Bus. & Prof. Code, § 2056, subds. (b), (c).) For the second cause of action, Plaintiff must

prove that he was retaliated against for presenting a grievance, complaint, or report. (Health & Saf. Code, § 1278.5, subd. (b).) “There is a rebuttable presumption that a health

care facility retaliated against an employee who presented a complaint or grievance

if the facility was aware of the grievance and took adverse action against the employee

within 120 days of the filing of the grievance or complaint.” (Dignity Health v. Mounts (2024) 105 Cal.App.5th 113, 120.)

Beginning

in 2022, Plaintiff complained that the hospital “operated under certain capitated or risk based insurance contracts that created financial incentives for the hospital to accept patient transfers and avoid transferring patients to higher-level facilities,”

and Defendants “perform[ed] complex surgical procedures at VPH even when VPH lacked appropriate specialists.” (Gohil Decl. ¶

4; see Gohil Decl. ¶¶ 5-6.) Plaintiff also

complained to hospital leadership about a financial conflict of interest involving

Dr. Grossman, the hospital’s Chief Medical Officer. (Gohil Decl. ¶ 8.) Plaintiff’s complaints about “conflicts of interest, unsafe patient transfers, transfer fee fraud, false claims, and unsafe patient care conditions” continued through April 2025.

(Gohil Decl. ¶ 9.) After a meeting

with the hospital’s Chief Executive Officer, Dr. Grossman was dismissed. (Gohil Decl. ¶ 9.) Thereafter, Plaintiff experienced the detrimental

changes to his call schedule and the August 2025 threat of suspension. (Gohil Decl. ¶¶ 9-10.)

Generally,

retaliation can be inferred from circumstantial evidence, such as knowledge that

the employee engaged in protected activities and the proximity in time between the

protected action and the allegedly retaliatory action. (See Fisher v. San Pedro Peninsula Hospital

(1989) 214 Cal.App.3d 590, 615.) Plaintiff

alleges that Defendants’ conduct occurred within 120 days of his complaints, creating

a rebuttable presumption that the conduct was retaliatory. (See Health & Saf. Code, § 1278.5, subd. (c).) The Court finds that Plaintiff has made a prima

facie showing of facts to support his claims.

Defendants

argue that under the Health Care Quality Improvement Act of 1986 and Business and

Professions Code section 805, they are immune from liability for filing the September

2025 report. (Motion at pp. 16-18.) They also argue that the litigation privilege

applies to their peer review of Plaintiff’s care. (Id. at pp. 19-20.) But Defendants have not shown that the defenses

extend to the alleged conduct beyond filing reports, such as interfering with Plaintiff’s

patient care and changing his call schedule.

This is not to say that Plaintiff will also defeat Defendants' claims of immunity and privilege at a later stage of litigation. The Court merely finds that Plaintiff has met his burden of "bring[ing] forward sufficient evidence to make out a viable prima facie case at trial, a burden that 'is not particularly high.' [Citation.]" (O&C Creditors Group, supra, 42 Cal.App.5th at p. 566.)

CONCLUSION

The
anti-SLAPP motion is DENIED.

The
Court orders that the Amended Complaint received on June 29, 2026 be deemed filed as of that date. Defendants are ordered to file a responsive pleading within 30 days.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 6th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court

[1] Defendants' request
for judicial notice is granted. Defendants'
evidentiary objections are overruled.